

22STCV28034 22STCV28034

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-31

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Case Number: 22STCV28034 Hearing Date: July 31, 2026 Dept: 512

HEARING DATE: Fri., July 31, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Citibank

N.A. v. Abdrakhmanov COMP. FILED: 08-29-22

CASE NUMBER: 22STCV28034

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE DEFAULT JUDGMENT

MOVING PARTY: Defendant

Takhir Abdrakhmanov

RESP. PARTY: None

MOTION TO VACATE DEFAULT JUDGMENT

(Code Civ. Proc., §§

473, subd. (d), 473.5)

TENTATIVE RULING:

Defendant Takhir

Abdrakhmanov's Motion to Vacate Default Judgment is GRANTED.

The default

entered on November 18, 2022; default judgment entered on January 4, 2023; and Abstract of Judgment issued on January 13, 2023, are hereby VACATED AND SET ASIDE.

In light of

Plaintiff's Dismissal filed on July 23, 2026, the case is dismissed without prejudice.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 30, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 30, 2026 ☐
Late ☒ None

ANALYSIS:

I.

Background

On August 29, 2022, Plaintiff
Citibank, N.A. ("Plaintiff") filed the instant action against Defendant Takhir
Abdrakhmanov ("Defendant"), alleging a Common Counts cause of action. (Compl.,
pp. 1-2.)

On November 18, 2022, default was

entered against Defendant.

On January 4, 2023, default judgment was entered against Defendant.

On January 13, 2023, an Abstract of Judgment was issued.

On July 1, 2026, Defendant, proceeding pro se, filed the instant Motion to Vacate Default Judgment (the "Motion"), alleging Defendant did not receive actual notice of this action in time to defend himself, and service of process was never properly rendered.

On July 23, 2026, Plaintiff dismissed the entire action without prejudice. (7/23/26 Dismissal.)

On July 24, 2026, Defendant filed a Supplemental Declaration in support of the Motion requesting that the Court rule on the Motion despite the dismissal of the action. Notably, no proof of service accompanies the Supplemental Declaration.

No Opposition to the Motion has been filed.

II. Procedural Issues

As an initial matter, the Court notes Plaintiff dismissed the entire action without prejudice on July 23, 2026. (7/23/26 Dismissal.)

However, Plaintiff did not oppose or respond to the Motion or provide any legal authority demonstrating the Court is unable to rule on the Motion despite the dismissal entered. As such, the Court proceeds to address the Motion on the merits.

III. Legal Standard & Discussion

Defendant moves to set aside the defaults and default judgment under Code of Civil Procedure sections 473, subdivision (d), and 473.5.

A.

Code of Civil Procedure section 473.5

Code of Civil Procedure section 473.5 provides, in pertinent part:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).)

Additionally, the motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

Here, Defendant failed to file the Motion within two years from entry of default on November 18, 2022, and entry of default judgment on January 4, 2023. (Code Civ. Proc., § 473.5, subd. (a).) Thus, the Motion is untimely.

As such, Defendant is not entitled to relief under Code of Civil Procedure section 473.5.

B.

Code of Civil

Procedure section 473, subdivision (d)

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d), emphasis added.)

An order is considered “void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence.” (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1021.) “There is no time limit to attack a judgment void on its face.” (Ibid.) However, if “the invalidity is not apparent [by an inspection of the judgment or the judgment roll], it may be set aside by motion, if such motion is filed within a reasonable time, i. e., not longer than the time set forth in Code of Civil Procedure, section 473.” (City of Los Angeles v. Morgan (1951) 105 Cal.App.2d 726, 730.) Code of Civil Procedure section 473, subdivision (d) contains no express time limit, and the California Supreme Court recently abrogated the rule that Section 473, subdivision (d) is subject to the two-year limit set forth in Code of Civil Procedure section 473.5. (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225-226 [“We hold that a section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation”].)

In the context of a default judgment, Code of Civil Procedure section 670 subdivision (a) defines the “judgment roll” as the following papers, without being attached together: “[T]he summons, with the affidavit or proof of service; the complaint; the request for entry of default with a memorandum indorsed thereon that the default of the defendant in not answering was entered, and a copy of the judgment.” (Code Civ. Proc., § 670, subd. (a).)

“California is a jurisdiction where the original service of process, which confers jurisdiction, must conform to statutory requirements or all that follows is void.” (Honda Motor Co. v. Superior Court (1992) 10 Cal.App.4th 1043, 1048, overruled on other grounds.)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413; see also Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160.) However, a proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Here, the Court finds the Motion timely. The Court finds the default and default judgment are not void on their face after a review of the judgment roll. The Court proceeds to address the merits of the Motion.

On October 13, 2022, Plaintiff filed proof of service demonstrating a registered process server personally served Defendant on September 3, 2022 at 7:29 p.m. at "1541 N Martel Ave Apt 313, Los Angeles, CA 90046-3642" (the "Martel address") and provided the following description of Defendant:

I delivered the documents to Takhir Abdrakhmanov with identity confirmed by subject saying yes when named. The individual accepted service with direct delivery. The individual appeared to be a black-haired Middle Eastern male contact 25-35 years of age, 5'8"-5'10" tall and weighing 140-160 lbs with an accent. Subject was hiding behind the door in dark apparent; I asked subject twice to confirm his name which he did. Handed process without issue.

(10/13/22 Proof of Service.)

As to Defendant's challenge to service of process, the challenged proof of personal service is attested to by a registered process server and, therefore, is entitled to a presumption of truth in its contents. The burden of proof thus shifts to Defendant. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Code

of Civil Procedure section 415.10 provides that “[a] summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery.”

In support of the challenge to service of process, Defendant provides a declaration attesting that Defendant was never personally served, and Defendant was residing out of state in Miami, Florida at the time of service; further, Defendant attaches a copy of Defendant’s Florida Power and Light electric bill and an American Express credit card statement that show Defendant’s mailing address was a Miami address at the time of the alleged service. (Motion, Abdrakhmanov Decl., ¶¶ 2-4, 7-9, Exhs. A-B.) Defendant also attaches a copy of Defendant’s apartment lease and final move-out statement from AMLI Midtown Miami, confirming that Defendant’s lease began on April 14, 2021, and continued through April 10, 2023, in Miami. (Motion, Abdrakhmanov Decl., ¶ 10, Exh. C.)

Additionally, Defendant provides a copy of his drivers license to show that Defendant’s physical characteristics do not match those described in the proof of service – Defendant states he “is an Asian male... [with a] true height [of] 6 feet 1 inch [and] weight 195 pounds, which is materially different from the process server’s description” of “a black-haired Middle Eastern male contact 25-35 years of age, 5'8"-5'10" tall and weighing 140-160 lbs with an accent.” (Motion, Abdrakhmanov Decl., ¶¶ 11-12, Exh. D; 10/13/22 Proof of Service.)

Finally, Defendant declares he never received service or was personally served in this matter, and the Court notes that the property Defendant owns in California – “20646 Lull St, Winnetka, CA 91306” – is not where service was alleged to be effectuated. (Motion, Abdrakhmanov Decl., ¶¶ 2-4, 14-17; 10/13/22 Proof of Service.)

The Court finds this evidence suffices to meet Defendant's burden of proof. Thus, the burden of proof shifts to Plaintiff.

However, Plaintiff did not file an Opposition or response to the Motion. Thus, the Court finds Plaintiff has failed to meet its burden of proof.

Accordingly, the Motion is GRANTED.

To the extent Defendant requests the Court also dismiss the action under Code of Civil Procedure section 583.210 due to Plaintiff's failure to serve the summons and complaint within three years from the action being commenced, the Court finds this request unsupported as the Motion does not seek to quash the proofs of service filed in this matter, and thus there are existing proofs of service in this action that were filed within three years from the action being commenced.

IV.

Conclusion
& Order

For the foregoing reasons, Defendant Takhir Abdrakhmanov's Motion to Vacate Default Judgment is GRANTED.

The default entered on November 18, 2022; default judgment entered on January 4, 2023; and Abstract of Judgment issued on January 13, 2023, are hereby VACATED AND SET ASIDE.

In light of Plaintiff's Dismissal filed on July 23, 2026, the case is dismissed without prejudice.

Moving party is ordered to give notice.